

DISSENTING OPINION OF MM. SCHÜCKING
AND JONKHEER VAN EYSINGA.

[*Translation.*]

The undersigned are unable to concur in the Order made by the Court.

They would recall that when, after the World War, Germany was obliged to cede to Poland a considerable part of her territory inhabited to a large extent by persons of German race, Poland, for her part, accepted and agreed to embody in a treaty with the Principal Allied and Associated Powers such provisions as those Powers deemed necessary to protect the interests of inhabitants of Poland who differ from the majority of the population in race, language or religion (Art. 93 of the Treaty of Versailles of June 28th, 1919). Effect was given to the obligation accepted by Poland by means of the Treaty of Minorities signed the same day. This Treaty prescribes equal treatment for Polish nationals belonging to the majority and those belonging to the minority, and this régime of equality is placed under the guarantee of the League of Nations. Supervision of this régime is entrusted to Members of the Council of the League of Nations, who are entitled if necessary to refer any matters observed by them to the Council or to the Permanent Court of International Justice (Art. 7, 8 and 12 of the Minorities Treaty). Resolutions of the Council of the League of Nations adopted in 1920, and subsequently modified on various occasions, provide for minorities' committees appointed from amongst the Members of the Council which are to deal with private petitions in connection with the minority régime.

In the present case, violations of the Minorities Treaty, resulting from the application of the Polish law of December 28th, 1925, concerning the carrying out of the agrarian reform—which law, according to the Member of the Council who has applied to the Court, is not in itself inconsistent with the Minorities Treaty—have formed the subject, first, of private petitions, next of recourse to the Council by one of its Members, and finally of recourse to the Permanent Court of International Justice by the same Member of the Council (Germany).

The complaint addressed to the Council by this Member was examined most carefully by a committee consisting of the representatives on the Council of Great Britain, Italy and Japan, of which committee M. Nagaoka was the spokesman. This Committee, in close collaboration with both the

Member of the Council who had drawn the Council's attention to the violations of the Minorities Treaty and Poland, devoted no less than twenty-one meetings to the matter in question. It appears from its report that, in so far as concerns the rate of application of the agrarian reform in the voivodeships of Posnania and Pomerelia to the majorities and the minorities respectively, it was able to take as its basis the data established by a Minorities Committee on which sat the representatives of Persia, Great Britain and Italy, and which had studied in 1930 and 1931 the petitions above mentioned addressed to the League of Nations by Polish citizens members of minority.

These data show in the case of the voivodeship of Posnania that whilst 65 % of the total area of estates belonged to members of the majority and 35 % to the German minority, the contribution to the agrarian reform of the majority for 1926-1929 was only 49.9 % and that of the German minority 50.1 %. The corresponding figures for the voivodeship of Pomerelia are 39.3 % and 60.7 %, and 27.2 % and 72.8 %. These figures show a considerable disparity between the area of the estates contributed for the purposes of the reform by landowners belonging to the majority and the area of the estates contributed by members of the minority.

The conclusion of the 1930-1931 Minorities Committee was that this disparity, which was inconsistent with the equal treatment provided for by Articles 7 and 8 of the Minorities Treaty, should be eliminated. When the Nagaoka Committee, at the end of 1932, prepared its report to the Council, it was able to record some improvement, but nevertheless the disparity unfavourable to the German minority still amounted to 5,500 hectares in the voivodeship of Posnania and 3,900 hectares in the voivodeship of Pomerelia, i.e. a total for the two of 9,400 hectares. The Nagaoka Committee accordingly proposed the suspension of all measures in application of the previous "nominal lists" pending complete rectification of the disparity noted, i.e. that the actual expropriation of the 5,500 hectares in the voivodeship of Posnania and the 3,900 hectares in the voivodeship of Pomerelia, thus temporarily suspended, should not take place until such time as it could be applied without again leading to disparity between the respective contributions of majority and minority landowners to the agrarian reform. It seems clear that this suspension would after some time rectify the disparity between the respective contributions of the minority and of the majority to the agrarian reform and that it would by no means paralyze the carrying out of the Polish law of 1925; the result of the suspension would simply be that the normal proportion of the estates to be contributed by the majority

landowners would be restored before minority estates were once more called upon to contribute to the agrarian reform.

The three representatives on the Nagaoka Committee did not conceal the fact that the solution proposed by them was not in itself likely to give full and entire satisfaction to every one of the minority landowners, the more or less excessive expropriation of whose land had led to the general disparity which had to be rectified. In this sense, the Nagaoka Committee was justified in pointing out that its proposal was not a strictly juridical one. It is, moreover, well known that the representative of the Member of the Council who drew the Council's attention to the violation of the Minorities Treaty held that he could not accept the proposal of his three colleagues and had recourse, pursuant to Article 12, paragraph 3, of the Treaty of Minorities, to the other organ of the League of Nations which is called upon to guarantee the protection of minorities in Poland, namely, the Permanent Court of International Justice.

The subject of the dispute submitted to the Court is the same as that which had occupied the Minorities Committee of the Council in 1930 and 1931, and which was brought to the attention of the Council by one of its Members in 1932. The issue is still that of violations of the Minorities Treaty committed by the Polish authorities in the execution of the agrarian reform law of December 28th, 1925, to the detriment of Polish nationals of German race. The execution of this law is a continuous administrative process. A period of several years may intervene between the time when a given minority estate is placed on the so-called nominal list, and the time when it begins to be worked by the new settlers. Moreover, fresh cases of expropriation are constantly being initiated; the Nagaoka Committee had before it some cases with which the Minorities Committee of 1930 and 1931 had not been acquainted; and similarly the Court has to consider cases of which the Nagaoka Committee was necessarily ignorant. "The various questions" raised, as we read in the letter of January 19th, 1932, in which one of the Members of the Council brings the matter before that body, under Article 12, paragraph 2, of the Minorities Treaty (*Official Journal* of the League of Nations, 1932, p. 1424), and "the violations of the Treaty of June 28th, 1919, committed to the detriment of Polish nationals of German race" mentioned in the Application instituting proceedings, are so many expressions denoting the same attitude which is made up of a number of individual acts, developing gradually, until they achieve their complete effect, and having their volume constantly augmented by fresh acts of the same description.

It is the incompatibility of this attitude with the terms of the Minorities Treaty that the Member of the Council seeks to demonstrate to the Court, and it is the further persistence in this attitude which the request for interim measures of protection seeks to arrest, pending the Court's decision on the merits. The effect of the interim measures would be, *inter alia*, to prevent any expropriations which may have been previously initiated by entries in a nominal list, from being made definitive—a contingency which is by no means hypothetical, as is shown by the cases instanced by the German Government's Agent.

This conception of the subject of the dispute cannot be upset by deducing an interpretation of the Application instituting proceedings—as the Polish Government's Agent has done—from the emphasis he has placed on the past tense in the word “committed”. Having regard to the continuous character of the acts impeached, the undersigned consider that any attempt to read into the words formulating the object of the dispute, in the Application instituting proceedings, a definite distinction between acts which have already been accomplished and those which belong to the future, would be an utter distortion of the clear meaning of the application. It would also be entirely inadmissible to construe the Application instituting proceedings as meaning that it was the intention of the Member of the Council, who was impelled to draw the Court's attention to the illegal character of certain *previous* entries in the nominal lists, to refrain from contending that any action taken *in the future* to give effect to the expropriation already initiated was also illegal.

In submitting the application on the merits, the Member of the Council had to consider two facts, the importance of which must not be under-estimated when considering the expediency of the request for the indication of interim measures. First, the rate of execution of the agrarian reform law of 1925 had been so far relaxed that, even if the Polish authorities had desired to do their utmost to restore within a short time the balance in the contributions made respectively by the majority and the minority to the agrarian reform, the process of restoration would have required a considerable time. For, though Article 11 of the law provides for an area of 200,000 hectares to be sub-divided in 1933, this figure is very far from having been attained, and the nominal list published by the Polish Government on March 31st, 1933, only affects an area of 2,475 hectares.

Secondly, the Member of the Council who brought the matter before the Court had to consider the fact that the year 1933 did not reveal any progress towards a restoration of equilibrium. The undersigned point out in this connection

that, according to the oral statement of the Polish Government's Agent at the public sitting on July 19th, 1933, the respective contributions of the Polish and German estates to the agrarian reform in 1933—taking count of voluntary subdivisions of estates—were as follows: in the voivodeship of Posnania, Polish estates contribute 65.2 %, German estates, 34.8 %; in Pomerelia, Polish estates contribute 39.8 %, German estates 60.2 %. These figures show that, though the percentages for 1933 correspond to the percentages of the total areas owned by the majority and the minority respectively, and even though they are very slightly in favour of the minority, it is none the less true that, in practice, the year 1933 will witness no progress whatever towards the restoration of the balance, so that Poland is doing practically nothing during the present year to effect that rectification which was described as necessary by the Minorities Committee of the Council in 1930 and 1931.

Having regard, on the one hand, to this absence of co-operation with a view to restoring that equilibrium so essential for the equality of treatment which is aimed at by the Minorities Treaty, and having regard also to the fact that minority estates which had previously been entered in the nominal lists are still being expropriated, and, hence, that infractions of the Minorities Treaty are still occurring, while at the same time the retarded rate of execution of the agrarian reform makes it difficult to restore the balance between the majority and the minority, the Member of the Council in question asked the Court to indicate, as an interim measure of protection under Article 41 of the Statute, a suspension of the very same kind which the Nagaoka Committee of the Council had proposed in December 1932, as a definitive solution of the infractions that had then been pointed out.

The undersigned are of opinion that the Court has before it a typical case in which interim measures would be entirely appropriate to preserve the rights of the German minority in Poland. They consider that the effect of such measures of protection would be considerably to facilitate the *reparation* of these rights, by their preservation, rather than by compensation for their loss. They are even of opinion that, if no Member of the Council had made a request for interim measures of protection, the Court should have indicated such measures *proprio motu*, availing itself of the powers conferred upon it by Article 41 of the Statute (see also Art. 57 of the Rules of Court).

The undersigned are also of opinion that, before the Court can give a decision one way or the other, on an application by a Member of the Council for the indication of interim

measures, where the said Member has applied to the Court under Article 12 of the Minorities Treaty, the Court must first decide whether an application made under paragraph 3 of the said Article 12 can furnish legitimate ground for such a request for the indication of interim measures. Poland has denied that it can do so; after careful consideration, the undersigned state that they do not agree with this view; but they are of opinion that it is not necessary in the present dissenting opinion to go into that question in greater detail.

(*Signed*) W. SCHÜCKING.

(„) V. EYSINGA.